

9:00 AM

Line 4

25-CIV-01245 MATTHEW GARRETT VS. TITAN EMPIRE INC.

MATTHEW GARRETT
TITAN EMPIRE INC.

PAULA K. CANNY
MICHAEL J. EARLY

Defendant's Motion to Compel Further Discovery Responses and/or for Dismissal of the Complaint with Prejudice

TENTATIVE RULING:

Initially, the Court notes that Defendant provided the improper address for the hearing. Department 20 is not located in San Mateo as the notice states, but instead at the Northern Courthouse, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (See Cal. Rules of Court, rule 3.1110 [the Notice "must specify" the location of the hearing].)

Defendant Titan Empire Inc. dba The Titan Group, Professional Investigations' Motion to Compel Further Responses from Plaintiff Matthew Garrett filed January 20, 2026, is GRANTED in part and DENIED in part as set forth below. The Court notes that because the motion is made omnibus style and the responses all assert a common objection answer, the Court's decision is largely issued in a similar single ruling style as opposed to four separate rulings.

Plaintiff's Request for Judicial Notice of two exhibits is GRANTED. (Evid. Code §§ 451, 452, 453.)

A. Background

Plaintiff has been a middle school teacher since 1997. In February 2023 a student's parent made a complaint in the nature of a sexual assault to the school after a student told her mother that plaintiff had made her feel uncomfortable. The school district used a third-party investigator, Defendant Titan Empire Inc., to investigate. Plaintiff filed the underlying action alleging that the investigation was conducted in a negligent manner that both damaged plaintiff's reputation and resulted in allegedly false criminal charges.

On November 5, 2025, defendant served Form Interrogatories Set One, Request for Admission Set One, Special Interrogatories Set On, and Request for Production of Documents Set One on plaintiff. On December 9, 2025, plaintiff served his responses, all of which asserted the following boilerplate response to every request: "Plaintiff objects to this request pursuant to the Fifth Amendment of the United States Constitution and Article 1 section 15 of the California State Constitution."

Defendants bring the instant motion to compel responses to Request for Production of Documents Nos. 1-33, Request for Admissions Nos. 1-35, Special Interrogatories Nos. 1-35, and Form Interrogatory Nos. 1.1, 2.1-2.2, 2.52.13, 4.1-4.2, 6.1-6.7, 8.1-8.8, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, 13.1-13.2, 14.1-14.2, and 17.1 pursuant to the Civil Discovery Act and also under the case authority of *Fremont Indemnity Co. v. Superior Court* (1982) 137 Cal. App. 3d 554 regarding the waiver of Fifth Amendment rights of a plaintiff who commences a civil action. In the alternative, defendant requests the Court dismiss the complaint with prejudice pursuant to Code of Civil Procedure sections 2023.010 and 2023.030.

Plaintiff opposes the motion, contending that California law is clear that Fifth Amendment rights are implicated when material in a civil case may be used against a defendant in a criminal action. (*Klein v. Superior Court (Thomas)* (1988) 198 Cal.3d 894, 905.) Because the criminal action involves similar and overlapping facts as the civil action, a stay is necessary to give plaintiff the ability to defend himself in both the criminal action and prosecute his civil matter that was facing a statute of limitations deadline when it was filed.

B. Legal Standard

“[T]he discovery statutes vest a wide discretion on the trial court in granting or denying discovery.” (*Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 378 [superceded by statute].) “ ‘The standard of review generally applicable to review of discovery orders is abuse of discretion, as management of discovery lies within the sound discretion of the trial court. [Citations.]’ [Citation.]” (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 198.)” (*Manuel v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 719, 727.)

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

That being said, “[d]iscovery devices must “be used as tools to facilitate litigation rather than as weapons to wage litigation.” (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 221.) “ ‘The trial courts in exercising their discretion should keep in mind that the Legislature has suggested that, where possible, the courts should impose partial limitations rather than outright denial of discovery....’ [Citation.]” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 559 (*Williams*).)

C. Discovery at Issue

I. Requests for Production of Documents and Things

Any party to an action may serve a written demand to permit inspection and copying of documents, electronically stored information, or other tangible things in the responding party's possession, custody, or control. (Code Civ. Proc., § 2031.010.) If the responding party objects to a demand, the party must (1) "[i]dentify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made"; and (2) "[s]et forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated." (§ 2031.240, subd. (b).) On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems the response is incomplete, inadequate or evasive. (Code Civ. Proc., § 2031.310, subd. (a).)

Defendant served a Request for Production of Documents Nos. 1-33 on November 5, 2025. Plaintiff's responses were served on December 9, 2025. Plaintiff responded to every request with the boilerplate objection "Plaintiff objects to this request pursuant to the Fifth Amendment of the United States Constitution and Article 1 section 15 of the California State Constitution." (Declaration of Nevin P. Miller, Esq. at p. 8, see also Miller Decl. Exs A & E.)

While the Court is not going to analyze every single one of the RFP's (No.'s 1-35), the Court will choose one as an example to illustrate how the blanket objection is wholly improper (choosing one example, does not mean that all other discovery requests do not need to be responded to in a code-compliant fashion).

RFP No. 21 seeks accolades, awards or commendations that Plaintiff would have received as a teacher. Responsive documents would be historical and pre-existing, given by others, with Plaintiff only being a recipient; as a recipient Plaintiff is not an author, and therefore such disclosure cannot be incriminating.

Separately however, it does appear that No.'s 4, 16, 24, 29 and 30 are potentially subject to the asserted privilege, and if there are responsive records withheld, a privilege log would also be required

II. Requests for Admission

The form and content of a request for admission is set forth in Code of Civil Procedure section 2033.060. Upon receipt of a response to a request for admission, a party may move for an order compelling a further response if party deems the response provided evasive, incomplete. (Code Civ. Proc. § 2033.290, subd. (a)(1).)

Defendant served their Request for Admissions Nos. 1-35 on November 5, 2025. Plaintiff's responses were served on December 9, 2025. Plaintiff responded to every request with the

boilerplate objection “Plaintiff objects to this request pursuant to the Fifth Amendment of the United States Constitution and Article 1 section 15 of the California State Constitution.” (Miller Decl. p. 8, see also Miller Decl. Exh. B & F.)

As above the Court is not going to analyze every single RFA (No.’s 1-35), but one example again illustrates that the blanket objection is wholly improper.

RFA No. 18 seeks an admission or denial that Plaintiff never paid Defendant for any services. This basic fact appears to have already largely been conceded by Plaintiff (“The Millbrae School District opened an investigation...They hired a private investigation firm called Titan....” Admitting that Plaintiff did not hire and pay Defendant (because the District did), is not incriminating.

III. Interrogatories

Code of Civil Procedure, section 2030.010 provides, “(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial.”

A party may respond to interrogatories, in writing and under oath, by (1) providing an answer containing the information sought, (2) exercising the option to produce writings, or (3) by objecting to the particular interrogatory. (Code Civ. Proc., § 2030.210 subd. (a).) Code of Civil Procedure section 2030.220 provides that, “(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.”

Here, defendant served their Special Interrogatories Nos. 1-35, and Form Interrogatories Nos. 1.1, 2.1-2.2, 2.52.13, 4.1-4.2, 6.1-6.7, 8.1-8.8, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, 13.1-13.2, 14.1-14.2, and 17.1 on November 5, 2025. Plaintiff’s responses were served on December 9, 2025. Plaintiff responded to every interrogatory request with the boilerplate objection “Plaintiff objects to this request pursuant to the Fifth Amendment of the United States Constitution and Article 1 section 15 of the California State Constitution.” (Miller Decl. p. 8, see also Miller Decl. Exh. C, D, G & H.)

In addition to the generic Fifth Amendment objection, responses to Special Interrogatories 11, 14, 17 & 26 and responses to Form Interrogatories 2.6, 2.12, state the interrogatory seeks premature disclosure of expert witnesses and attorney work-product. Finally, response to Form Interrogatory 8.5 also objects that the request seeks premature disclosure of a witness list. These separate objections are distinct from the blanket objection and refusal under the Fifth Amendment privilege, and there may be a proper basis for same. However, there is both an inadequate meet and confer, nor adequate separate argument from either side on this separate objections. As the Court has discretionary power to control discovery, the Court sustains these objections and denies the motion to compel on these specific requests, but without prejudice to these very same questions being re-asked at a future date.

Defendant's argued basis to compel a further response is the same for all requests: a blanket refusal is inappropriate because the request applies to the factual contentions plaintiff made in his complaint therefore waiving his Fifth Amendment privilege citing *Fremont, infra*. (Separate Statement p. 2.)

Defendant adds to the form interrogatory responses that the responses to many form interrogatories do not, in any way, incriminate him nor subject him to a risk of criminal prosecution thus the Fifth Amendment does not apply. These requests are relevant and/or likely to lead to the discovery of admissible evidence. Providing information would neither "support a conviction" nor "furnish a link in the chain of evidence needed to prosecute" him under *Blackburn v. Superior Court* (1993) 21 Cal.App. 414, 428.) (See Separate Statement p. 42.) Lastly, regarding Form Interrogatory Nos. 12.1-17.1, defendant also contends that plaintiff is already required to disclose at least part of the information requested by these interrogatories under Penal Code section 1054.3 and the criminal complaint. In general the Court tends to agree. For example again, the entire 2.0 series seeks basic background information such as name, date of birth, residence and employment, etc., is not incriminating.

D. Burden of Proof

Once a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221 [regarding interrogatories specifically].) To do so, the responding party must affirmatively show that the burden of responding would be so great, and the benefit of the information sought would be so minimal, that it would defeat the ends of justice to require the party to answer. (*Columbia Broadcasting System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.)

Instead of presenting argument regarding their burden of production and protection other than speculating the possibility of implicated Fifth Amendment violations, plaintiff instead proffers suggestions that "[t]he court has several options before it that would protect the status quo... The first is to deny the Titan motion without prejudice and allow it to be brought at the end of the criminal matter. The second is to continue this hearing until October 30, the date of the Plaintiffs pending motion to stay the matter pending the resolution of the criminal proceeding. The third is to stay the entire matter now and wait until the criminal matter is completed." (Opp. p.3.)

Addressing the Court's calendaring options does not adequately present a particularized burden of response to each discovery request.

E. Discussion

Whatever their response to requests for accommodation of the conflicting constitutional rights of a defendant in concurrent civil and criminal proceedings, courts have consistently refrained from recognizing any Constitutional need for such accommodation. Rather, the alleviation of tension between constitutional rights has been treated as within the province of a court's discretion in seeking to assure the sound administration of justice. ... '[T]he fact that a man is indicted cannot give him a blank check to block all civil litigation on the same or related underlying subject matter. Justice is meted out in both civil and criminal litigation. ... The court, in its sound discretion, must assess and balance the nature and substantiality of the injustices claimed on either side.' (*Gordon v. Fed. Deposit Ins. Corp.* (1970) 138 U.S.App.D.C. 308, 427 F.2d 578, 580.)"

(*People v. Coleman* (1975) 13 Cal.3d 867, 885.)

Here, defendant relies on the authority of *Fremont Indemnity Company v. Superior Court* (1982) 137 Cal.App.3d 554 (*Fremont*) in support for their position that plaintiff's blanket, boilerplate objection to all discovery is prejudicial. In *Fremont*, a seminal case regarding the question of whether a plaintiff who files a civil action waives his constitutional privilege as to any facts tendered by the complaint, the Court of Appeal famously framed the issue as "whether a person can initiate a lawsuit and then by reliance upon the privilege against self-incrimination effectively prevent the party sued from getting at the facts by way of discovery, and thus prejudice preparation of his defense." (*Id.* at 557.) *Fremont* involved a civil lawsuit against an insurance company claiming fire insurance proceeds where the plaintiff was being indicted for arson on the very claim he was making.

On the one hand, the Court tends to agree with plaintiff that his alleged conduct does not directly intersect with defendant's conduct, based on the allegations in the complaint. The complaint in this action looks to the manner in which Titan conducted their investigation and whether defendant conducted the investigation negligently, whether defendant should have promptly reported the matter to the police to investigate, as allegedly Defendant's investigation "tainted the entire criminal investigation brought against Garrett." Complaint, ¶ 29. However, the investigation whether by Titan or the police, then leads to facts on Plaintiff's alleged actual conduct, which arguably may be incriminating and subject to the Fifth Amendment privilege.

On the other hand, the issues are certainly interrelated and easily meet the general test of relevance and discoverability, i.e. the investigations by Titan Empire, the related investigations by law enforcement and the facts underlying the criminal charges against Mr. Garrett are all discoverable because they could lead to the discovery of admissible evidence. The issue before the Court is the sheer breadth of the discovery before it given plaintiff's blanket objection to all of the discovery. The Court has attempted to address the breadth by using examples as above.

Plaintiff contends *none* of the information sought is relevant at this time- and perhaps at all- given the singular cause of action alleging defendant's negligence in the underlying case. This contention is entirely unconvincing. Further, "a blanket refusal to testify is unacceptable; a person claiming the Fifth Amendment privilege must do so with specific reference to particular questions asked or other evidence sought." (*Warford v. Medeiros* (1984) 160 Cal.App.3d 1035, 1045.)

Plaintiff is well to heed the Court's statement in *Williams, supra*, a case involving the right to privacy:

The flaw is the **de facto starting assumption** that such an egregious invasion is involved **in every request** for discovery of private information. **Courts must instead place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies,** as Hill requires.

(*Williams, supra*, 3 Cal.5th at 557, emphasis added.)

In further analogy, with respect to a non-party's testimony, "[T]he privilege [against self-incrimination] protects against real dangers, **not remote and speculative possibilities** (*Zicarelli v. New Jersey Investigation Comm'n* (1972) 406 U.S. 472, 478, 92 S.Ct. 1670, 1674, 32 L.Ed.2d 234), [thus] a witness must satisfy the court that the claim of privilege is justified and not a mere subterfuge. (*United States v. Mandujano* (1976) 425 U.S. 564, 575, 96 S.Ct. 1768, 1775, 48 L.Ed.2d 212; *Hoffman v. United States* (1951) 341 U.S. 479, 486, 71 S.Ct. 814, 818, 95 L.Ed. 1118.)" (*Warford v. Medeiros, supra*, 160 Cal.App.3d at 1043, emphasis added.)

Accordingly, pursuant to Warford's admonition that "a person claiming the Fifth Amendment privilege must do so with specific reference to particular questions asked or other evidence sought" (*Warford v. Medeiros, supra*, 160 Cal.App.3d at 1045) defendant's motion is GRANTED as to all of the discovery not excluded above.

F. Sanctions

Sanctions are authorized against a party who unsuccessfully brings a motion to compel further directed at interrogatories, requests for production or RFAs, unless the Court finds the party made the motion "with substantial justification" or other circumstances make the sanction "unjust." (Code Civ. Proc. §§ 2030.300, subd. (d), 2031.100, subd. (d), 2031.290, subd. (d), 2023.030, subd. (a).) However, neither side has requested any sanctions and the Court thus declines to impose any.

G. Amended Discovery Responses

In light of the above ruling, for each discovery request where the motion to compel is granted, Plaintiff is ordered to provide a code-compliant response within thirty (30) days from service of the Order after hearing. As the *Fremont* court has provided, “he cannot have his cake and eat it too” and the possible future remedy for non-compliance would be for this Court to entertain a future motion to dismiss. *Fremont v. Sup. Ct., supra*, 137 Cal.App.3d at 560.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-07522 KELLY TRAN VS. BAY AREA AG INC. A CALIFORNIA CORPORATION,
ET AL

KELLY TRAN
BAY AREA AG INC. A CALIFORNIA CORPORATION

RAMSEY HANAFI
SHAUN J. VOIGT

Defendant's Motion to Compel Arbitration and Stay or Dismiss Proceedings

TENTATIVE RULING:

Defendant Bay Area AG, Inc.'s Motion to Compel Arbitration and Stay or Dismiss Proceedings is DENIED.

Defendant Bay Area AG, Inc. ("BAAG") seeks to compel the claims asserted against it by Plaintiff Kelly Tran to arbitration, based upon an arbitration agreement she signed twice during her employment with BAAG. Tran does not dispute that she signed an otherwise enforceable arbitration agreement covering the claims asserted in the Complaint, instead contending that the agreement is invalid under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 ("EFAA").

A. EFAA Applies to Entire Cases

The EFAA renders a predispute arbitration agreement, at the plaintiff's election, invalid and unenforceable "with respect to a case which is filed under Federal, Tribal, or State law and relates to the ... the sexual harassment dispute." (9 U.S.C. § 402(a).) Indeed, 9 U.S.C. § 402(a) states, in part:

Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, ... no predispute arbitration agreement ... shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.

(9 U.S.C. § 402(a) [emphasis added].) The statute defines "sexual assault dispute" as "a dispute involving a nonconsensual sexual act or sexual contact, as such terms are defined in [18 U.S.C. § 2246] or similar applicable Tribal or State law[.]" 9 U.S.C. § 401(3).

Controlling California authority also holds, "when a plaintiff's lawsuit contains at least one claim that fits within the scope of the act, the arbitration agreement is unenforceable as to all claims asserted in the lawsuit." (*Liu v. Miniso Depot CA, Inc.* (2024) 105 Cal.App.5th 791, 800.) "By its